

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar
Justice Musarrat Hilali

Civil Petition No.3661 of 2025

(On appeal from the judgment dated
23.07.2025 passed by the Peshawar High
Court Abbottabad Bench in W.P.No.848-
A/2020)

Mohammad Ziafat

.....Petitioner

Versus

Tariq Nawaz Khan Tareen and others

.... Respondents

For the Petitioner(s):

Ms. Saira Khalid, ASC
Sh. Mehmood Ahmad, AOR

For the Respondent No.1:

Mr. Abdul Rehman Qadar, ASC
Mr. Anis Muhammad Shahzad,
AOR

Date of hearing:

11.11.2025

Judgment

Muhammad Ali Mazhar, J: This Civil Petition for leave to appeal is directed against judgment dated 23.07.2025 passed by the Peshawar High Court, Abbottabad Bench in W.P.No.848-A/2020.

2. According to the concise facts, the respondent No.1 filed an ejectment application through attorney under Section 13 of the West Pakistan Urban Rent Restriction Ordinance, 1959 (**Ordinance**) against the petitioner being tenant for the Shop No.1, situated at Old Bus Stand, GT Road, Haripur on the ground of bona fide personal need for his own business. It was further alleged that at the time of renting out the shop, petitioner/tenant had orally assured that whenever the suit shop will be required by the

landlord, he will vacate the same in one month. The learned Rent Controller settled the issues and after recording evidence, the ejectment application was dismissed vide order dated 19.02.2020. The landlord/respondent No.1 preferred an appeal before the learned Additional District Judge-V/Model Civil Appellate Court, Haripur. The appeal was accepted/allowed vide judgment dated 08.07.2020. Being dissatisfied, the petitioner/tenant challenged the appellate judgment by means of writ petition which was dismissed by the learned High Court vide impugned judgment.

3. The learned counsel for the petitioner argued that the impugned judgment is based on a complete non-reading and misreading of evidence and it failed to discuss this legal point. It was further contended that the High Court also failed to consider that Section 10 of CPC was applicable as a case was already pending between the parties regarding the same subject matter. It was further averred that the impugned judgment dated 23.07.2025 mentions that the counsel of petitioner was present whereas in previous order sheet dated 14.07.2025, the next date was 21.07.2025 and not 23.07.2025. Finally, it was avowed that the landlord or his authorized attorney failed to prove bona fide need of rented premises for personal occupation.

4. The learned counsel for the respondent No.1, argued that the arguments in writ petition were heard on 21.07.2025 and he further asserted that Writ Petition No.848-A/2020 was fixed at Serial No.1 in cause list of Peshawar High Court, Abbottabad Bench dated 21.07.2025. It was further contended that the writ petition was argued on 21.07.2025 by the counsel for the petitioner and respondents but the judgment was announced on 23.07.2025. He further argued that the Courts below have conclusively held that the Rent Petition was filed by Muhammad Sohail on the basis of the Authority Letter / NOC No.866 dated 31.01.2018 thus, objection to the effect was rejected. He further contended that the respondent No.1 filed the original affidavit which confirmed that Tariq Nawaz Khan through authority letter and a special power of attorney, appointed Muhammad Sohail as landlord, therefore, Muhammad

Sohail filed the Rent Petition against the Petitioner. The learned counsel fully supported the appellate judgment as well as the judgment passed by the learned High Court in the Writ Petition.

5. Heard the arguments. Though the respondent No.1 applied for eviction of the tenant from demised premises on the ground of personal need, the bone of contention was that the respondent No.1 did not require the rented premises for his bona fide personal use, but for his attorney Muhammad Sohail. Whereas according to the respondent No.1, he had formally delegated all his rights and powers as landlord to Muhammad Sohail through a duly executed authority letter as well as a special power of attorney and on the strength of aforesaid indentures, he was fully competent to institute and pursue the ejectment proceedings against the petitioner/tenant.

6. In order to thrash put and resolve the controversy to some logical end, it is quite imperative to have a look at the definition of the terms landlord and tenant as provided under Section 2 of the West Pakistan Urban Rent Restriction Ordinance, 1959 (**Ordinance**) as under:-

Section 2 (c)

“landlord means any person for the time being entitled to receive rent in respect of any building or rented land whether on his own account or on behalf or for the benefit of any other person, or as a trustee, guardian, receiver executor or administrator for any other person, and includes a tenant who sublets any building or rented land in the manner hereinafter authorized and every person from time to time deriving title under a landlord”

Section 2 (i)

“tenant means any person by whom or on whose account rent is payable for a building or rented land and includes (a) a tenant continuing in possession after the termination of the tenancy in his favour and (b) the wife and children of a deceased tenant, but does not include a person placed in occupation of a building or rented land by its tenant, unless with the consent in writing of the landlord, or a person to whom the collection of rent or fees in a public market, cart-stand, or slaughter-house or of rents for shops has been farmed out or leased by a Municipal Corporation, a Municipal Committee, Town Committee, the Provincial Urban Development Board or any authority subordinate to it”

7. It is gleaned from the literal definition of the expression “landlord” from the definition clause that it includes any person for the time being entitled to receive rent in respect of any building or rented land whether in his own account or on behalf or for the benefit of any other person. Even a trustee, guardian, receiver, executor or administrator for any other person has been included in the definition of landlord under the Ordinance. So far as the grounds for eviction of tenant are concerned, that is inter alia provided under Section 13 of the Ordinance. So far as the eviction on the ground of personal bona fide need is concerned, it is explicated in sub-section (3) (a) of Section 13 of the Ordinance that a landlord may apply to the Controller for an order directing the tenant to put the landlord in possession: (i) in the case of a residential building, if (a) he requires it in good faith for this own occupation or for the occupation of any of his children; (b) he is not occupying another residential building, suitable for his needs at the time, in the same urban area in which such building is situated; and (c) he has not vacated such a building without sufficient cause after the commencement of this Ordinance in the said urban area; (ii) in the case of a non-residential building or a scheduled building or rented land, if (a) he requires it in good faith for this own use or for the use of any of his children; (b) he or his said child is not occupying in the same urban area in which such building is situated for the purpose of his business any other such building or rented land, as the case may be, suitable for his needs at the time; and (c) he has not vacated such a building or rented land without sufficient cause after the commencement of this Ordinance, in the said urban area: Provided that where the tenancy is for a specified period agreed upon between the landlord and the tenant the landlord shall not be entitled to apply under this sub-section before the expiry of such period.

8. In the case of Messrs F. K. Irani & Co. versus Begum Feroze (1996 SCMR 1178), this Court held that if the case falls within the four corners of S.15, Sindh Rented Premises Ordinance, 1979, considerations like that of the tenant being an old tenant from the year 1964 and having invested huge amounts on establishment of business, which had earned goodwill as well, would be irrelevant.

While approving the dictum laid down in the case of *Mst. Toheed Khanam v. Muhammad Shamsad* 1980 SCMR 593, it was observed that on the issue of personal need, statement on oath, if consistent with the application and not shaken in cross-examination or disproved in rebuttal, is sufficient to prove that it is bona fide. Furthermore, the suitability by landlord in any one of the available premises entirely depends upon his choice to select as to which of the buildings he/she wishes to use personally or to provide the same to his/her children. Whereas this Court in the case of *Juma Sher versus Sabz Ali* (1997 SCMR 1062) held that neither any legal requirement exists to the effect that landlord in seeking ejectment of tenant from a commercial premises on ground of personal and bona fide need must disclose the nature of the business which he intended to start in the premises, nor it necessary for the landlord to prove his personal need of such premises that he must possess experience in the trade or business which he intends to set up in the premises after eviction of his tenant. Moreover, this Court in the case of *Muhammad Shoaib Alam versus Muhammad Iqbal* (2000 SCMR 903), held that where findings of High Court were very much consistent with the evidence on record and also in accord with record and also in accord with the principles of law, no interference was warranted with such findings. It was further held that the statement of landlord on oath if consistent with the application for ejectment and not shaken in cross-examination or disproved in rebuttal was sufficient to prove that such requirement of landlord was bona fide. Last but not least, this Court held in the case of *Messrs Al-Karam Travels (Pvt.) Ltd. versus East West Insurance Co. Ltd* (2001 SCMR 688) that the tenant failed to produce evidence in rebuttal to disprove the case of the landlord who had proved its bona fides for personal use. Neither there was any inconsistency between the pleadings and evidence of the respondent, nor the testimony of its witnesses was shaken in the cross-examination. In such situation, according to the above judgment, the personal need of the premises were deemed to have been proved by the landlord. Further references may also be made to following dictums focusing the grounds of eviction of the tenants vis-à-vis personal need etc. such as *Messrs Tiger Wire Product Ltd.*

v. S. Abrar Hussain **(1983 SCMR 402)**; Abdul Razzaq v. Muhammad Aslam **(1995 SCMR 201)**; Rajab Ali v. Darius B. Kandawalla **(PLD 1984 Karachi 14)**; Sabu Mal v. Kika Ram alias Heman Das **(1973 SCMR 185)**; Peerzada Rafiq Ahmad v. Chaudhry Abdul Rehman **(1980 SCMR 772)**; Ishratullah Siddiqui v. Alibhoy **(1996 SCMR 1833)**; Unisam Enterprises v. Bank of Punjab **(1999 SCMR 1119)** and Mehdi Nasir Rizvi v. Muhammad Usman Siddiqui **(2000 SCMR 1613)**.

9. The learned trial Court nonsuited the landlord merely on the ground that he does not require the premises for his personal use but his attorney-Muhammad Sohail requires the shop for his own benefit. In contrast, the learned appellate Court while setting aside the judgment of trial court and allowing ejectment petition observed from the record that the landlord had already entrusted all his powers as landlord to Muhammad Sohail vide authority letter as well as special power of attorney and any person authorized even to collect the rent could be treated as landlord and thus could file proceedings for ejectment in his name, therefore, Muhammad Sohail was competent to act as landlord and retrieve the possession of the suit shop. The authority letter executed in favour of Muhammad Sohail was further acknowledged and endorsed by special power of attorney executed by the landlord and both said documents reflect delegation of all powers of landlord therefore, the delegatee was competent to pursue the rent petition for ejectment of the respondent/tenant, who had filed eviction petition on behalf of landlord. The learned High Court rightly affirmed the finding of the appellate Court which is based on appreciation of the evidence available on record. The personal need of the demised premises was established through cogent and reliable evidence. Both the courts below concurrently held that Muhammad Sohail was duly authorized as landlord to assert the personal need. There is no bar or restriction under the law that the attorney cannot institute the ejectment proceedings on the ground of bona fide personal need.

10. The constitutional jurisdiction may be invoked to encounter and collide with an extraordinary situation. It is limited to the exercise

of powers in the aid of curing or making correction and rectification in the order of the courts or tribunals below passed in violation of any provision of law or as a result of exceeding their authority and jurisdiction or due to exercising jurisdiction not vesting in them. The jurisdiction conferred under Article 199 of the Constitution is discretionary with the objects to foster justice in aid of justice and not to perpetuate injustice. However, if it is found that substantial justice has been done between the parties then this discretion may not be exercised. It is also well settled exposition and tenet of law that the High Court in its constitutional jurisdiction should keep away from interfering in the findings of facts recorded by the courts below concurrently after right and proper appraisal of evidence and cannot substitute and supplement its own findings.

11. By and large, it is an established legal principle that concurrent findings of fact by lower courts should not be interfered with unless there is a patent illegality, misreading or non-consideration of material evidence, or an error of law floating on the surface of the record. The superior courts exercise restraint and are slow to disturb concurrent findings unless exceptional circumstances, illegality, or a jurisdictional error are demonstrated. Where glaring errors, non-reading or misreading of evidence, or any legal and jurisdictional issues arise, the stumbling block of the doctrine of concurrent findings cannot shield flawed or erroneous decisions. It is not within the domain or function of the Appellate Court and/or the High Court in writ jurisdiction to re-weigh or re-interpret the evidence, but they can examine whether the impugned judgment or order attains the benchmark of an unflawed judgment; and whether it is in consonance with the law and evidence and free from unjust and unfair errors apparent on the face of record. The learned counsel for the petitioner failed to point out any lawful justification for the interference in the concurrent findings recorded by the appellate court and affirmed by the High Court which seem to be strictly in accordance with law. On the contrary, the impugned judgment divulges that all relevant factors and grounds raised were properly considered and answered by the learned High Court. This Court could not go behind concurrent findings of fact unless it can

be shown that the finding is on the face of it against the evidence or so patently improbable, or perverse that to accept it could amount to perpetuating a grave miscarriage of justice or if there has been any misapplication of the principle relating to appreciation of evidence or finally, if the finding could be demonstrated to be physically impossible or against the law.

12. In the wake of the above discussion, we do not find any illegality, perversity, or impropriety in the impugned judgment passed by the learned High Court. The Civil Petition is dismissed and leave refused.

Chief Justice

Judge

Judge

Islamabad
11.11.2025
Khalid
Approved for reporting